

All criminal pro. Exit Exam Part III, NEAEA 2010 – 2023
አጠቃላይ ከ 2003 ጀምሮ እስከ 2015 ዓ.ም ድረስ ያሉ የወንጀል/ስ/ ህግ መውጫ ፈተና ጥያቄዎች ናቸው

1. Which one of the following is true about Ethiopian Bailing system: Bail is granted unconditionally.
 - A. Non-financial bailing systems though not frequented by our courts are recognized by law.
 - B. Some serious crimes are non-bailable *ipso facto*.
 - C. Post-conviction bail is not allowed.
 - D. All
2. Assuming that police officer H obtains search warrant to search the premise of Ms X in want of some material evidence related to a crime of forgery. One is necessarily true:
 - A. H may not search X 's premise before securing X's consent.
 - B. H may search the premise only in day time.
 - C. H may in no way seize materials not listed in the search warrant.
 - D. H may seize a material so long as it is not self -incriminatory.
 - E. None
3. If you are an appellate advocate, and the client request you to file an appeal, which of the following will automatically make you file the appeal?
 - A. The existence of any kind of error that can be observed from the records of the trial court
 - B. The absence of any remedy in the trial court.
 - C. The fact that the case is finalized in the trial court
 - D. All
4. Assuming that the evidence presented by the Public Prosecutor proves theft rather than robbery, the court shall render one of the following decisions:
 - A. The case would be dismissed and an amended charge would be filed.
 - B. The court would immediately convict the defendant of a new charge.
 - C. The court may convict the defendant, if the latter consents.

D. The case would be dismissed and the prosecutor is barred from instituting another charge afresh.

E. None.

6. The potential outcomes of an appellate review are:

- A) Confirmation of the lower court's decision on issues of law and facts;
- B) Reversal of the lower court's decision;
- C) Variation of the lower court's decision;
- D) Answers "a" to "c";
- E) Referral to the cassation bench if it has basic errors in law.

7. Appellate review means:

- A) A request that a judgment is not clear;
- B) An appeal to a higher court so that the case be remanded to lower court for review;
- C) A request that more time be provided to the appellant in the execution of the judgment;
- D) a request lodged solely against basic errors in law made by the lower court;
- E) None of the above.

8. The Ethiopian law of *res judicata* is

- A) Only an issue precluding device
- B) Applicable only if the former decision was given by a court of competent jurisdiction
- C) An absolute bar to matters formerly decided between same parties litigating in the same capacities.
- D) A non-waivable defense
- E) None

9. In which one of the following do Ethiopian courts have *subsidiary* but not principal jurisdiction?

- A. Crime committed in a foreign country by an Ethiopian enjoying immunity
- B. Crime committed outside Ethiopian territory in violation of an International treaty to which Ethiopia is a party
- C. Crime committed outside Ethiopia against the state of Ethiopia
- D. Crime committed by a member of the House of Peoples'

representatives

E. None of the above.

10. Which of the following is false about duration of investigation under Ethiopian law?

A. The law does not regulate duration of investigation where a suspect is not under arrest

B. Except for the offence of vagrancy, the law is silent on the duration of further investigation when ordered by the public Prosecutor.

C. The law provides not only for the duration of each remand but also for the number of remands for vagrancy, terrorism, and Corruption offences.

D. Except for terrorism and vagrancy related offences, the law is silent as to the total period of investigation.

E. A and C.

11. Which one of the following is neither relevant for deciding whether or not to grant bail nor for the amount of bail to be deposited?

A. Nature of the offence the arrestee is suspected for

B. Age of the arrestee

C. Behavior of the arrestee

D. Status of investigation

E. None of the above.

12. One of the following is true regarding examination-in- chief under Ethiopian law?

A. It is a process whereby a party who has called a witness to give evidence questions him/her with the view to elicit evidence favorable to the examiner.

B. It is applicable in both civil and criminal cases.

- C. Leading questions are prohibited in examination-in-chief.**
- D. Answers 'A' to 'C'**
- E. Answers 'A' and 'C'**

13. One of the following is not true regarding cross examination under Ethiopian law:

- A. Cross examination is the right of the party against whom the witness testifies to probe questions to undermine the credibility of the witness.**
- B. Unlike in the case of examination-in-chief, in the case of cross examination leading questions can be posed to a witness.**
- C. It applies only to criminal cases.**
- D. "A" and "B."**
- E. None.**

14. Which one of the following is true about the law of pre-trial hearing in Ethiopia?

- A. It has the major purpose of resolving issues.**
- B. It has the main purpose of framing issues, if any.**
- C It involves mainly examination of parties and not of evidence.**
- D Parties are more active than judges at pre-trial hearing.**
- E. B and C are correct.**

15. Which one of the following represents principles of Modern Criminal procedure?

- A. The principle of equality of arms**
- B. The principle of presumption of innocence**
- C. The principle of double jeopardy**
- D. Equality before the law**

E. All of above.

16. One of the following may not affect the fairness of a criminal trial at all:

- A. Trial in absentia**
- B. Trial in camera**
- C. Quality of lawyers**
- D. Televised trial**
- E. None of the above.**

17. Choose the most appropriate statement about pre-trial lawyering:

- A. It refers to various tasks performed before litigation.**
- B. It involves litigation planning, fact investigation, but not legal investigation.**
- C. It involves designing litigation strategy.**
- D. It can involve negotiation between the parties.**
- E. All of the above are true except "B"**

18. Appellate litigation may end up in:

- A. the variation of the lower court's decision;**
- B. the confirmation of the lower court's decision.**
- C. the reversal of the decisions which is appealed from;**
- D. remand to the lower court;**
- E. any one of the above.**

19. In general, due process in criminal procedures requires the following:

- A. Notice of the proceedings;**
- B. A hearing;**
- C. Opportunity to present a defense;**
- D. An impartial tribunal and an atmosphere of fairness;**
- E. All of the above,**

20. Which one of the following is true about preliminary inquiry?

- A. it is a process where prosecutions witnesses are examined in the presence of the suspect.**
- B. It is a mandatory process regarding grave offences.**

C. The court of preliminary inquiry may convict or acquit because prosecution witnesses are examined in the presence of the accused.

D. The accused is not allowed to cross examine prosecution witnesses because this is not a trial proper.

E. It is a process conducted only regarding crimes punishable with rigorous imprisonment.

21. What happens when a criminal charge is filed with the court without jurisdiction?

A. The court refers it to another court having jurisdiction.

B. The court continues to entertain it if the court is a higher court.

C. The court will strike out the charge.

D. The court will order the prosecutor to file it to the court having jurisdiction.

E. The court asks for direction from a higher court.

22. Which one is a special criminal procedure among the following?

A. witness examination in a preliminary enquiry.

B. remand/bail procedure.

C. private prosecution.

D. petty offence procedure.

E. appellate procedure.

23. The correct hierarchy of services of summons is represented by:

A. Personal service →substituted service →constructive service

B. Constructive service →personal service →substituted service

C. Personal service →constructive service →substituted service

D. Constructive service →substituted service →personal service

E. Substituted service →personal service →constructive service

24. Which one of the following cannot be legitimately done to secure the attendance of the accused at his trial?

A. summoning the accused directly.

B. bench warrant for the police to arrest and bring the accused to court.

C. publication of the summons in a newspaper.

D. summons to the guarantor to bring the accused to court when the accused failed to appear.

25. Which one of the following is true under the present criminal justice system of Ethiopia?

A. Silence of an accused may sometimes be considered as amounting to admitting of the commission of the criminal act in the charge.

B. An antecedent of an accused may not be disclosed before judges determine the kind and extent of punishment that an accused person has to serve.

C. An accused may be cross-examined on his statement once s/he gave a statement during her/his defense evidence.

D. A court may not put any question to an accused who gave a statement on her/his behalf during her/his defense evidence.

E. An accused may be required to disclose his/her ground of defense and the nature and type of evidence s/he intends to introduce.

26. One of the following is not necessarily relevant in determining the amount of bail:

- A. The seriousness of the crime**
- B. The criminal record of the accused**
- C. The financial status of the accused**
- D. The financial status of the guarantors**
- E. The social ties of the defendant**

27. Which one of the following rights is directly affected by the interrogation stage:

- A. The right to silence**
- B. The right to bail**
- C. The right to disclosure**
- D. The right to appeal**
- E. The right to confrontation**

28. The Law of Criminal procedure does not have close connection with:

- A. Constitutional Law**
- B. The Law of Criminal Evidence**
- C. The Law of Torts**
- D. Human Rights Law**
- E. Criminal Law.**

29. The rules on venue of courts are procedural. This means:

- A. A court which lacks proper venue cannot give a valid judgment**
- B. Objection to venue of courts is not a waivable defence**
- C. A court which lacks proper venue may still give a valid judgment**
- D. The rules are also jurisdictional**
- E. Interlocutory appeal is admissible.**

30. A petition for review by cassation bench of the Federal Supreme Court should be filed within days of a final judgment.

- A. 60 days**
- B. 30 days**
- C. 90 days**

- D. 10 days**
- E. 20 days**

31. One of the following does NOT fall under material jurisdiction of Federal courts.

- A. Cases arising from federal laws and international agreements.**
- B. Cases in which the two litigant parties are permanent residents of two different Regional States.**
- C. Cases involving issues of nationality.**
- D. Cases involving immovable properties situated outside Addis Ababa and Dire Dawa.**
- E. Cases arising from negotiable instruments.**

32. An appellate court shall remand a case where

- A. the lower court made an error in examining witnesses**
- B. the lower court erred in evaluating evidence produced by the litigants**
- C. the lower court disposed the suit based on preliminary objections**
- D. the lower court omitted to frame a relevant issue**
- E. the lower court omitted to decide on an issue central to the dispute.**

33. One of the rights of an accused during the pre-trial proceeding is:

- A. the right to a public hearing.**
- B. the prohibition of double jeopardy.**
- C. the right to know the reasons for arrest.**
- D. the right to appeal.**
- E. the right to a review of judgment.**

34. The right to bail of a person:

A. is unconditional.

B. is evaluated against some subjective criteria as stipulated under Article 63 of the Criminal Procedure Code.

C. can be denied if the objective criteria of Article 67 of the Criminal Procedure Code of Ethiopia are satisfied.

D. can be denied if the subjective criteria of Article 67 of the Criminal Procedure Code of Ethiopia are satisfied.

E. is not applicable in Ethiopia.

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35. A preliminary inquiry is important in Ethiopia's criminal legal system because:

A. it helps to avoid needless proceedings that do not produce results.

B. both the accused and the prosecution office can make a request to hold a preliminary inquiry.

C. it can be used as an alternative to a formal trial.

D. it can be applicable to all sorts of crimes.

E. it can be instituted at the request of the judge.

36. When a public prosecutor refuses to institute a proceeding, a victim of a crime can be allowed to bring a private prosecution. Accordingly,

A. the private complainant exercises all the rights which the public prosecutor would have in public proceedings.

B. the private complainant is given the power to select the court that has local jurisdiction.

C. the private complainant does need a prior authorization to bring a private prosecution for crimes punishable only upon formal complaint.

D. the private complainant is no longer considered a victim.

E. the private complainant incurs no cost if he requests the court to summon additional witnesses.

37. Same cause of one of the following grounds of preliminary objection precludes the action:

- A. The pendency of the suit.**
- B. The subject matter of the suit being res judicata.**
- C. Material jurisdiction of the suit being out of the power of the court.**
- D. The court lacks local jurisdiction.**
- E. An objection made on misjoinder or non joinder of parties.**

38. A criminal procedure is NOT concerned with:

- A. Arrest and conviction.**
- B. Trial and appeal.**
- C. Fundamental rights of an accused person.**
- D. Fairness of the trial process.**
- E. Allocation of power among state organs**

39. The applicable standard in case of arrest without a warrant is:

- A. Reasonable grounds to believe.**
- B. Reasonable suspicion.**
- C. Suspicion.**
- D. Probable cause.**
- E. Subjective belief of the arresting police officer.**

40. Choose the correct statement:

- A. The right to bail is an absolute right.**
- B. Presumption of innocence cannot be derogated.**
- C. Corruption offences are non-bailable.**
- D. Terrorist offences are non-bailable.**

E. Article 59 of the Criminal Procedure Code of Ethiopia does not give a judge the option to release a person unconditionally.

41. Which one of the following has the power to enact a criminal procedure code in Ethiopia?

- A. State legislative organ**
- B. The federal government.**
- C Not clearly specified in the FDRE Constitution**
- D. Both the federal and state governments**
- E. The House of Federation.**

42. Beyond reasonable doubt standard in criminal cases may explained by one of the following;

- A. It means virtually certain.**
- B. It requires absolute certainty.**
- C. It requires equal standard of proof with civil cases.**
- D. It means proof with reasonable doubt.**
- E. It is applicable only for constitutional litigations.**

43. One of the following is true about inquisitorial system of litigation:

- A. It is mainly practiced in common law legal systems.**
- B. In such litigation, courts have a minimum role.**
- C. Ethiopian courts fall under this form of litigation.**
- D. This system of litigation empowers courts for further inquiry of evidence.**
- E. This form of litigation bars courts from examining witness.**

44. Which of the following is NOT a factor of relevancy of facts with facts in-issue in criminal case?

- A. Character**
- B. Motive**
- C. Spontaneous declaration**
- D. State of things**
- E. Intimidation**

45. In principle, in Ethiopia, how does the Law of Criminal Procedure relate to substantive criminal law?

- A. It provides for a list of conducts to which the substantive criminal law attaches penalty.**
- B. It recognizes penalties for conducts which the substantive criminal law prohibits.**
- C. It presents rules for prosecuting conducts criminalized by substantive criminal law.**
- D. It recognizes the general principles on which the system of criminal law is built.**
- E. It contains rules which can be used to fill the gaps in the substantive criminal law.**

46. Prosecution is one of the processes that we observe in criminal justice systems. That being the case, which one of the following falls within the scope of this process?

- A. Criminalizing an undesirable conduct.**
- B. Imposing sentences for crimes committed.**

- C. Giving pardons to convicted criminals.**
- D. Providing amnesty to group criminals.**
- E. Discontinuing criminal charge against suspects.**

47. If information about the commission of a crime is communicated to the police, in accordance with the relevant provisions of the Criminal Procedure Code, what should the police do next?

- A. Pass on the information to prosecution office.**
- B. Frame a criminal charge based on the information received.**
- C. Commence investigating the matter.**
- D. Wait for more information to come in.**
- E. Seek authorization from prosecution to start investigation.**

48. In criminal justice system, one of the following chains of activities can best describe the responsibilities of the police.

- A. Conducting investigation-starting prosecution-undertaking witness examination**
- B. Undertaking trial-conducting investigation-producing evidence during trial.**
- C. Initiating prosecution-receiving information-examining witness at trial.**
- D. Receiving information-conducting investigation-reporting to prosecution.**
- E. Receiving information-conducting investigation-deciding to prosecute.**

49. Which one of the following rights can be regarded as procedural due process right?

- A. Right to get pardon.**
- B. Right to present defense evidence.**

- C. Right to get suspension of execution of penalty.**
- D. Right to seek trial by court of one's choice.**
- E. Right to delay trial.**

50. Currently, which one of the following crimes is entertained by regional courts through delegation?

- A. Crimes involving negotiable instruments**
- B. Crimes involving negligent homicide**
- C. Crimes against sexual liberty such as rape**
- D. Crimes against the institution of family**
- E. Crimes against property of individuals**

51. In light of the dictates of the principle of presumption of innocence, which one of the following sentences is true in the Ethiopian context?

- A. The accused person does not have to present defence evidence until the prosecution makes a case against him.**
- B. Someone who is charged for committing a crime will immediately start defending himself.**
- C. Both the prosecution and the accused will present their defence evidence simultaneously.**
- D. There is an exception to the rule that everyone is presumed innocent until proved guilty.**
- E. Once the presumption of innocence is destroyed by the prosecution, there is no chance for it to be restored.**

52. During trial, which one of the following is the duty of the prosecution?

- A. Opening his case, calling witnesses, and conducting cross-examination of witnesses.**
- B. Opening his case, calling witnesses, and conducting examination-in-chief and cross-examination of witnesses.**

C. Opening his case, calling witnesses, and conducting cross-examination and re-examination of witnesses.

D. Opening his case, calling witnesses, and conducting re-examination of witnesses after their examination-in-chief by the accused.

E. Behaving in a manner that is impartial and objective throughout the trial.

53. Which one of the following is true about the issuance of warrant of arrest against non-appearing witnesses?

A. If the defendant may obstruct the execution.

B. When the witness may be physically incapable to attend the court.

C. When the surety discharges his obligation.

D. If the witness has intentionally avoided service.

E. The summons has not been duly served.

54. Which one of the following statements is true about investigation of crime?

A. It is a search for applicable rule for crime committed.

B. It cannot be undertaken by other authority except the police.

C. Arrest of suspect is not allowed during investigation stage.

D. It involves examination of witnesses.

E. Search of premises of suspect is not allowed at investigation stage.

55. One of the following is a correct statement about search and seizure

A. Search against arrested person can be conducted by the opposite sex.

B. Purpose of search is to obtain evidence for the case under investigation.

C. Courts may not order search to be conducted at night time.

D. There is no possibility that search can be conducted without warrant

E. Physical examination of suspect is not part of search.

56. Restriction of liberty of a suspect may not amount to arbitrary arrest on one of the following grounds:

- A. when there is no evidence indicating the suspect has committed crime.**
- B. when a person arrested for flagrant offence is prosecutable up on complaint on-scene.**
- C. when a person fails to appear before police after duly summoned for investigation.**
- D. when arrest is made without establishing the identity of suspect.**
- E. when the police are required to get arrest warrant before effecting arrest and failed to comply.**

57. One of the following crimes does not fall under criminal jurisdiction of federal courts:

- A. Air plane hijacking.**
- B. Trafficking of dangerous drugs.**
- C. Crime relating to inter-ethnic conflict.**
- D. Crime against currencies.**
- E. Petty offences legislated by regional states.**

58. Bail is not allowed as per the Ethiopian criminal procedure law under one of the following scenarios:

- A. Where a suspect is charged for grave wilful injury.**
- B. Where a suspect is being investigated for negligent homicide.**
- C. Where a suspect is being investigated for crime of intimidation.**
- D. Where a suspect is charged for aggravated theft.**
- E. Where suspect is charged for incest.**

59. Upon reception of police investigation report, the public prosecutor may take one of the following actions under Ethiopian criminal procedure law:

- A. Direct the police to institute charge within 15 days.**
- B. May seek instruction from competent court to institute a charge.**
- C. May close the case to avoid public anger.**
- D. May refuse to institute the charge for lawful reasons.**
- E. May institute charge within 1 month.**

60. One of the following is a correct description about criminal charge in general:

- A. Criminal Charge can be communicated orally to the defendant.**
- B. Criminal charge is not an indication of due process.**
- C. Several persons may be charged together only when the prosecutor wishes so.**
- D. Criminal charge can be brought against unidentified suspect.**
- E. Criminal charge must be prepared in writing.**

61. One of the following is true about appeal under the Ethiopian Criminal Procedure Code:

- A. Public prosecutor cannot appeal for inadequacy of sentence.**
- B. Interlocutory appeal is possible for refusing adjournment.**
- C. Appeal can be taken from a ruling on preliminary objection.**
- D. Person who pleaded guilty cannot appeal against his conviction.**
- E. Defendant can appeal against his acquittal.**

62. Change of Venue in criminal proceeding may be allowed on one of the following grounds:

- A. When the judge is related to a party by consanguinity or affinity.**

- B. When the defendant does not understand the language of court.
- C. When change of venue is more convenient to one of the parties.
- D. One the defendants has personal animosity with the presiding judge.
- E. Where fair trial and impartial trial cannot be held in subordinate court.

63. Which one of the following is a correct ground for preliminary objection in a criminal case?

- A. Previous acquittal for related case.
- B. Period of limitation.
- C. Civil case is pending on the same matter in another court.
- D. Required permission is obtained by the prosecutor to institute charge.
- E. Where one criminal charge contains two counts of crime.

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